

Tentative Rulings and Resolution Review Hearings
June 15, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

BRINGHURST, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206683

Tentative Ruling on Motion to Compel Further Responses: Defendants FCA US, LLC and Crown Dodge Chrysler Jeep Ram seek an order compelling Plaintiffs Chad and Clair Bringhurst to provide further responses to Defendant’s Requests for Production, Set One. Defendants also request monetary sanctions. Plaintiff opposes the motion on the grounds that it is mooted by the service of verified responses on June 2, 2026.

A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c).

Here, Defendant has provided evidence that it propounded Requests for Production on November of 2025. Plaintiff provided unverified responses on December 15, 2025. When responses are unverified, case law provides that is the same as serving no responses at all. (*Appleton v Superior Court* (1988) 206 Cal.App.3d 632, 636.)

Plaintiff has provided evidence that it served verified responses on June 2, 2026, after this Motion to Compel was filed. While providing verified responses renders the motion to compel moot, sanctions are still available per CRC 3.1348(a). While the Court has considered Plaintiff’s explanation for the failure to serve verified responses, it does not find substantial justification or that other circumstances make the imposition of a monetary sanction unjust. Defendant was forced to bring this motion to prompt compliance. Therefore, sanctions are warranted. Defendant seeks sanctions of \$2,260.00. This consists of 5.5 hours attorney hours expected to be spent on this motion at a rate of \$400 per hour, plus a \$60 filing fee. The Court will reduce the hours by 1

because no reply was filed. If counsel for Defendant does not appear today the Court will reduce the attorney hours by an additional hour. Sanctions of \$1,860.00 are awarded (reduced to \$1,460 *only if* Defense counsel does not appear at today's hearing, because the estimated attorney time includes appearance today).

The Motion to Compel Further Responses is moot. The request for sanctions is **GRANTED** in the amount of \$1,860.00. Defendant's proposed order will be modified and executed.

CONE VS. MJB WELDING SUPPLY, INC

CASE NUMBER: 25CV-0208678

Tentative Ruling on Motion to Dismiss Entire PAGA Action: Plaintiff Isaiah Cone moves to dismiss Plaintiff's representative PAGA claims against Defendant MJB Welding Supply, Inc., without prejudice. Plaintiff also moves to dismiss Plaintiff's individual PAGA claims against Defendant with prejudice. Plaintiff has received no consideration for the dismissal of the representative PAGA claims. Potential aggrieved employees have not been notified of this action. The Motion is **GRANTED**. The proposed order will be executed. All future dates, including today's 1:30 p.m. Mandatory Settlement Conference are **VACATED**. The clerk is directed to vacate all future dates and close the file. No appearances are necessary on today's calendar.

HAGE, III, ET AL. VS. MERCED FACULTY ASSOCIATES MEDICAL GROUP, INC., ET AL.

CASE NUMBER: 26CV-0210078

Tentative Ruling on Demurrer: Defendant Novo Nordisk Inc. demurs to the First Cause of Action for Wrongful Death, the Fifth Cause of Action for Products Liability-Failure to Warn, and the Seventh Survival Cause of Action of the Complaint filed by Plaintiffs, George Ruduan Hage III and Victor Trillo. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Demurring or Moving Party Regarding Meet and Confer filed on May 12, 2026, indicates the parties met and conferred by telephone and did not reach an agreement.

Request for Judicial Notice. Defendant has requested the Court take judicial notice of: (1) the FDA-approved prescribing information and medication guide for Wegovy as it existed in July of 2025; (2) the FDA-approved prescribing information and medication guide current as of the date of filing; (3) the USDA website, demonstrating products, approval dates and history, letters, labels and reviews for Wegovy current as of the date of filing; (4) the FDA-approved prescribing information and medication guide for Wegovy, as it existed at the time of original approval on June 4, 2021; and (5) the Complaint in Shasta County case 209540. The request is granted pursuant to Evid. Code §§ 452 and 453.

Defendant further requests the Court take judicial notice of the First Amended Complaint in Shasta County case 209540. The request is denied. The request was made on June 8, 2026, along with the Reply brief. Considering these materials would be prejudicial to Plaintiffs, who did not have the opportunity to oppose.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action” or if the complaint is uncertain. CCP § 430.10(e)-(f). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Duplicative filings. Novo Nordisk, Inc. demurred to the First, Fifth, and Seventh Causes of Action on the grounds that there is a similar action pending under CCP § 430.10(c). CCP § 430.10(c) provides that a party may demurrer on the grounds that “[t]here is another action pending between the same parties on the same cause of action.” Defendant identifies Shasta County case 209540 as a prior case filed which is substantially similar to the present matter. The complaint in this action adds Plaintiff George Ruduan Hage III and removes Defendant Walgreens Co. Case 209540 was removed to federal court on February 2, 2026, and this court’s jurisdiction was automatically suspended at that time unless and until it was remanded. The case was remanded back to the Superior Court on April 22, 2026. The reply raises that a First Amended Complaint was filed in case 209540 on February 17, 2026, which is identical to the Complaint in the present action. The Court notes the First Amended Complaint was filed while the Superior Court’s jurisdiction was suspended. At this time, the Court declines to rule on this issue and will require the parties to appear and address dismissal of one of the actions.

First Cause of Action. The First Cause of Action for Wrongful Death alleges that Novo Nordisk Inc. breached their duty of care to the decedent by failing to “provide adequate warnings regarding restart protocols and cardiovascular risks” regarding the subject product. Defendant argues that the claim is barred by the learned intermediary doctrine. The learned intermediary doctrine provides that “...in the case of prescription drugs, the duty to warn runs *to the physician*, not to the patient.” *Carlin v. Superior Court* (1996) 13 Cal.4th 1104. Here, the Complaint specifically alleges that Novo Nordisk Inc.’s duty was to the decedent.

In opposition, Plaintiffs contend that the learned intermediary doctrine doesn’t apply when a Plaintiff alleges that the warnings provided to the physicians were insufficient and that adequate warning would have changed the physician’s conduct. In *Amiodarone Cases* (2022) 84 Cal.App.5th 1091, the Court held that “even when a plaintiff alleges that warnings to a physician were inadequate, under California law the learned intermediary doctrine applies, and a manufacturer’s duty is to warn the prescribing physician about dangers associated with the drug.” The First Cause of Action as to Novo Nordisk Inc. is precluded by the learned intermediary doctrine. The Demurrer is **SUSTAINED** without leave to amend as to Defendant Novo Nordisk, Inc. in the First Cause of Action.

Fifth Cause of Action. The Fifth Cause of Action of the Complaint for Products Liability- Failure to against Novo Nordisk, Inc. alleges that Defendant failed to provide adequate warnings to healthcare providers and patients of specified risks associated with the subject product. “The rules of strict liability require a plaintiff to prove only that the defendant did not adequately warn of a

particular risk that was known or knowable in light of the generally recognized and prevailing best scientific and medical knowledge available at the time of manufacture and distribution.” *Anderson v. Owens-Corning Fiberglas Corp.*, supra, 53 Cal.3d 987. “Drug manufacturers need only warn of risks that are *actually known or reasonably scientifically knowable*.” *Carlin v. Superior Court*, supra, 13 Cal.4th 1104. The Complaint fails to allege the specified risks were actually known or reasonably scientifically knowable at the time of manufacture and distribution, thus giving rise to a failure to warn.

Additionally, as stated above the duty to warn runs to the physician, not the patient. *Carlin v. Superior Court*, supra, 13 Cal.4th 1104. The Fifth Cause of Action alleges that defendant failed to warn healthcare providers and patients. The Demurrer as to the Fifth Cause of Action is **SUSTAINED** with leave to amend regarding Defendant’s duty to warn patients and whether the risks were actually or reasonably known to Novo at the time of manufacture and distribution.

Seventh Cause of Action. The Seventh Cause of Action of the Complaint is a Survival Action. CCP § 377.30 provides that “[a] cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent’s successor in interest...and an action may be commenced by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” Here, the First and Fifth Causes of Action are the only causes of action against Novo Nordisk Inc. As stated above, the Demurrer is sustained as to the First and Fifth Causes of Action, therefore the Survival Action cannot endure. The Demurrer as to the Seventh Cause of Action is **SUSTAINED** with leave to amend as to Defendant Novo Nordisk Inc.

In summary, the Demurrer is **SUSTAINED** without leave to amend as to the First Cause of Action; **SUSTAINED** with leave to amend as to the Fifth Cause of Action regarding a duty to warn patients and whether the risks were actually or reasonably known to Novo Nordisk Inc. at the time of manufacture and distribution; and **SUSTAINED** with leave to amend as to the Seventh Cause of Action. Plaintiff shall file an Amended Complaint within 15 days of service of notice of entry of order. Defendant is to prepare an Order consistent with the Court’s ruling. The parties are required to appear on today’s calendar to discuss the present case 210078, Shasta County case 209540, and whether Plaintiff intends to dismiss one of the actions as they appear to be identical.

KAPLANIS VS. SOUTHWICK, ET AL.

CASE NUMBER: 25CV-0208011

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal (“OSC”) issued on May 20, 2026, pursuant to Gov’t Code § 68608(b) to Plaintiff Patricia Kaplanis, in pro per, for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. No response to the OSC has been filed. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today’s calendar.

NOLIND VS. DAVIE, ET AL.

CASE NUMBER: 25CV-0206940

This matter is on calendar for hearing on Plaintiff’s Motion to Compel Further Responses to discovery. On June 12, 2026, the Court received a Notice of Withdrawal of the Motion to Compel Further Responses to discovery and a Notice of Settlement. The matter is dropped from calendar and no appearances are necessary.

POLLYCOVE VS. HOFER, ET AL.

CASE NUMBER: 25CV-0209224

Tentative Ruling on Motion for Interlocutory Judgment: Plaintiff Dean Michael Pollycove moves for an interlocutory judgment directing partition of real property by sale pursuant to Code of Civil Procedure § 872.720, and for appointment of a partition referee pursuant to C.C.P. § 873.010.

The Court finds that this motion is premature. Code of Civil Procedure sections 874.311, et seq. is the Partition of Real Property Act. It sets forth the procedure for partition of real property held in tenancy in common where there is no record binding all the cotenants which governs partition of the property. Plaintiff's Complaint alleges the real property at issue here, 16 acres of unimproved land in Shasta County, is owned by Plaintiff and Defendants in shares as tenants in common. Plaintiff's Motion for Interlocutory Judgment represents that there is no agreement in a record binding all the cotenants which governs the partition of the property. Therefore, the Partition of Real Property Act applies. However, Plaintiff now seeks an order of partition by sale before the Court has determined the fair market value of the property, and before the cotenants have been given the opportunity to purchase the interest of the cotenant requesting sale as required by statute.

CCP § 874.316 provides that the court shall determine the fair market value of the property. If the cotenants agree to a value or method of valuation, the court shall adopt the value or the value produced by the agreed method. CCP § 874.316(b). Whether the parties agree to a value, or whether it is determined by an appraisal ordered by the court, the court then conducts a hearing to determine fair market value. CCP § 874.316(f). After this hearing, but before considering the merits of the partition action, the court shall determine the fair market value of the property and send notice to the parties of the value. CCP § 874.316(g). There is no evidence before the Court that the parties have agreed to a value, or a method of valuation.

The CCP provides that after the determination of value under Section 874.316, the court shall send notice to the parties that any cotenant may buy the interest of the cotenant that requested the sale. CCP § 874.317(a). There is no evidence before the Court that the cotenants have been given the opportunity to purchase the interest of the cotenant requesting the sale.

The Motion is **DENIED** without prejudice as premature. The parties are ordered to appear today to discuss the status of the case. The parties should be prepared to address whether the parties can agree to a value or method of valuation. If the parties cannot agree, then the Court will proceed to appoint a disinterested real estate appraiser as required by CCP § 874.316.

PORTFOLIO RECOVERY ASSOCIATES, LLC VS. FOOTE

CASE NUMBER: 25CVG-01284

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff Portfolio Recovery Associates, LLC seeks an order deeming admitted the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Brandee Foote by mail on December 30, 2025.

The Court does not have any record of Defendant filing a responsive pleading in this matter. The Proof of Service of Summons on file indicates Defendant was personally served on July 18, 2026. California Rule of Court 3.110(g) provides that if a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file

a request for entry of default within 10 days after the time for service has elapsed. The court may issue an order to show cause why sanctions should not be imposed if the plaintiff fails to timely file the request for the entry of default.

Plaintiff has failed to timely file a request for entry of default as required by CRC 3.110(g). The Motion to Deem RFAs Admitted is **DENIED**. This matter is set for review regarding status of default on **Monday, July 13, 2026 at 9:00 a.m. in Department 64**.

SIMS VS. C&M OPPORTUNITIES, LLC, ET AL.

CASE NUMBER: 25CV-0208112

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on March 20, 2026 to Plaintiff and Counsel for failure to serve Defendant Christopher Jordan Witcher. Plaintiff has filed a Declaration in response to the OSC. Plaintiff indicates the Amended Complaint has been successfully served, and Plaintiff now needs to serve the Statement of Damages before requesting default. Plaintiff details efforts to locate and serve Defendant. Plaintiff has located him and expects to complete service soon. Today’s hearing is continued to **Monday, July 27, 2026 at 8:30 a.m. in Department 64** for further proceedings on the OSC, and **Monday, July 27, 2026 at 9:00 a.m. in Department 64** for review regarding status of service and default. No appearances are necessary on today’s calendar.

9:00 a.m. Review Hearings

BOWEN VS. ASK PETE'S CORP

CASE NUMBER: 25CV-0208122

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than December 29, 2026. Both sides have posted jury fees. The parties are ordered to appear to provide the Court with available trial dates.

EMERSON-MERTE VS. RICKS, ET AL.

CASE NUMBER: 25CV-0206896

This matter is on calendar for review regarding status of the case. Defaults have been entered as to both Defendants. No status statement has been filed. Requests for Entry of Court Judgment have been filed, but no proposed Judgment has been provided. The Court is in receipt of a May 29, 2026 letter request from Plaintiff’s counsel requesting to set a default prove-up hearing. The Court also notes that a Motion to Set Aside Default is set for July 6, 2026. An appearance is necessary on today’s calendar to discuss the status of the case and whether a default prove-up hearing should be set before or after the July 6, 2026 hearing.

FREEDOM MORTGAGE CORP. VS. THE HEIRS AND DEVICES OF MICHAEL MATOUS, DECEASED, AND ALL PERSONS CLAIMING BY, THROUGH, OR UNDER SAID DECEDENT, ET AL.

CASE NUMBER: 25CV-0207543

This matter is on calendar for review regarding status of default as to Sameul Matous as Administrator of the Estate of Michael Matous, and status of default judgment as to all Defendants. Default has been entered as to Sameul Matous. No request for entry of default judgment has been

filed. No status statement has been filed. An appearance is necessary on today's calendar to provide a status of the case.

GATES VS. SHASTA COUNTY

CASE NUMBER: 26CV-0209985

This matter is on calendar for review regarding status of the writ. Defendant's Demurrer was sustained with leave to amend on April 27, 2026. Plaintiff was granted 10 days leave to amend. Notice of Entry of Order is on file. Plaintiff's time to file an Amended Complaint has run. No Amended Complaint has been filed. No status statement has been filed. Defendant has not filed a motion to dismiss the entire action and for entry of judgment. CRC 3.1320(h); CCP 581(f)(2). An appearance is necessary on today's calendar to provide a status of the case.

MARTENS VS. DEARMAN, ET AL.

CASE NUMBER: 24CV-0204395

This matter is on calendar for review regarding status of settlements and minors' compromises. Plaintiffs have filed a Status Conference Statement indicating Plaintiffs are working to resolve medical liens and expect to file minor compromise petitions within the next 90 to 120 days. Today's review hearing is continued to **Monday, October 12, 2026 at 9:00 a.m. in Department 64** for review regarding status of settlements and minors' compromises. No appearances are necessary on today's calendar.

MURRAY VS. PRIME HEALTHCARE SERVICES - SHASTA, LLC

CASE NUMBER: 23CV-0203217

This matter is on calendar for status of judgment/dismissal. Plaintiff has filed a status statement indicating that settlement proceeds have not yet been received but are in progress, and upon receipt a request for dismissal will be filed. Today's review hearing is continued to **Monday, September 14, 2026 at 9:00 a.m. in Department 64** for review regarding status of judgment/dismissal. No appearances are necessary on today's calendar.

PERRY VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0209982

This matter is on calendar for review regarding status of the writ. Respondent has filed a proposed briefing and hearing schedule. According to Respondent, Petitioner did not respond to meet and confer correspondence. Petitioners have not filed a proposed briefing schedule or status statement. Petitioner has also not filed a proposed order regarding the requested stay as directed on April 27, 2026. The Court is prepared to accept the Respondent's proposed briefing schedule. All parties should appear today to set the matter for hearing.

PORTFOLIO RECOVERY ASSOCIATES, LLC VS. GRAYSON

CASE NUMBER: 25CVG-01672

This matter is on calendar for review regarding status of the case. A Conditional Notice of Settlement of Entire Case was filed October 10, 2025. The notice indicates that a request for dismissal will be filed no later than August 1, 2027. The matter is continued to **Monday, August 30, 2027 at 9:00 a.m. in Department 64** for status of dismissal. The Court intends to dismiss the matter without prejudice that date per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the hearing. No appearance is necessary on today's calendar.

SIMS VS. C&M OPPORTUNITIES, LLC, ET AL.

CASE NUMBER: 25CV-0208112

This matter is on calendar for trial setting. Today's hearing is continued to **Monday, July 27, 2026 at 9:00 a.m. in Department 64** for trial setting concurrently with the further proceedings and review regarding status of service and default discussed in the above Law and Motion tentative ruling. No appearances are necessary on today's calendar.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$4,000.00 U.S. CURRENCY

CASE NUMBER: 23CV-0203182

This asset forfeiture matter is on calendar for review regarding status. A Claim Opposing Forfeiture was filed on September 11, 2023 by William Edward Dodd. A proof of service is on file. A Petition for Forfeiture in Rem has been filed. A proof of service is on file. An appearance is necessary on today's calendar to provide the Court with a status of the underlying criminal proceeding.